

Arun Kumar Kashyap v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 25 September 2024 · 2024:AHC:157222-DB · Writ-C No. 29212 of 2024 · **Writ disposed; authority to consider Clause 4.4 application within four weeks.**

HEADNOTE

An occupier of part of a family house cannot be refused a new electricity connection merely for want of the owner's (father's) no-objection. Clause 4.4 of the Electricity Supply Code, 2005, read with Annexures 4.2 and 4.3, requires the licensee to consider the application on an indemnity bond where owner consent is not produced. The writ was disposed of directing consideration in accordance with that clause within four weeks after hearing persons having a stake.

FACTUAL SUMMARY

The petitioner lived with his family on the second floor of ancestral House No. 52, Bhupendra Puri, Modi Nagar, Ghaziabad; his father and younger brother occupied the ground and first floors under a common electricity connection. After a family dispute the father sided with the younger brother and disconnected supply to the petitioner's portion. The licensee refused a separate connection in the petitioner's name for want of the father's no-objection. He sought a mandamus to grant the connection and decide his application dated 21 August 2024.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

occupier connection on indemnity bond without owner consent

HOLDING

Clause 4.4 of the Electricity Supply Code, 2005, read with Annexures 4.2 and 4.3, provides for either the owner's consent letter or, in its absence, an indemnity bond by the lessee, tenant or occupier. Electricity being essential to life, a family-member occupier cannot be refused a connection merely for want of the father's or owner's NOC; the application is to be considered under that clause after hearing persons having a stake. ¶ 5-6

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond An occupier of part of a family house cannot be refused a new electricity connection merely for want of the owner's (father's) no-objection.. ¶ 5-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER A NEW CONNECTION IS TO BE GRANTED ON THE PETITIONER'S 21.08.2024 APPLICATION

Competent authority directed to consider the application, if not yet done, in accordance with law within four weeks after hearing parties having a stake. ¶ 6

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Gaurav Sharma v. State of U.P.</i> 2019 (2) ADJ 213			4	Referred
<i>Seema Mansoor v. U.P. Power Corporation Ltd.</i> Writ C No. 28295 of 2014			5	Referred

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.